

HOUSE No. 4014

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing pharmacists to provide opioid use disorder treatment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 4014

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 4014) of Carmine Lawrence Gentile relative to insurance coverage for pharmacists providing opioid use disorder treatment. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing pharmacists to provide opioid use disorder treatment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17W the following section:-

3 Section 17X. (a) The commission shall provide to any active or retired employee of the
4 commonwealth who is insured under the group insurance commission coverage for collaborative
5 drug therapy, as defined by section 24B½ of chapter 112, performed by a pharmacist at a rate not
6 less than that provided to other nonphysician practitioners if the therapy:

7 (i) is for the treatment of opioid use disorder;

8 (ii) is within the scope of practice of the pharmacist; and

9 (iii) would otherwise be covered if the service or procedure were provided by any health
10 care service provider or practitioner, including a physician, advance practice registered nurse or
11 physician assistant.

(c) Whenever a service is performed by a licensed pharmacist and reimbursed pursuant to this section, the licensed pharmacist shall be granted such rights of participation, plan admission and registration as may be granted to any other health care service provider or practitioner, including a physician, advance practice registered nurse or physician assistant performing such a service.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10W the following section:-

Section 10X. (a) The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician shall provide coverage for collaborative drug therapy, as defined by section 24B½ of chapter 112, performed by a pharmacist at a rate not less than that provided to other nonphysician practitioners if the therapy:

(i) is for the treatment of opioid use disorder;

(ii) is within the scope of practice of the pharmacist; and

(iii) would otherwise be covered if the service or procedure were provided by any health care service provider or practitioner, including a physician, advance practice registered nurse or physician assistant.

(c) Whenever a service is performed by a licensed pharmacist and reimbursed pursuant to this section, the licensed pharmacist shall be granted such rights of participation, plan admission

and registration as may be granted to any health care service provider or practitioner, including a physician, advance practice registered nurse or physician assistant performing such a service.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting after section 47ZZ the following section:-

Section 47AAA. (a) A policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within the commonwealth, which is considered creditable coverage under section 1 of chapter 111M, shall provide coverage for collaborative drug therapy, as defined by section 24B½ of chapter 112, performed by a pharmacist at a rate not less than that provided to other nonphysician practitioners if the service or procedure:

(i) is for the treatment of opioid use disorder;

(ii) is within the scope of practice of the pharmacist; and

(iii) would otherwise be covered under the policy, plan, or contract if the service or procedure is provided by any health care service provider or practitioner, including a physician, advance practice registered nurse, or physician assistant.

(c) Whenever a service is performed by a licensed pharmacist and reimbursed pursuant to this section, the licensed pharmacist shall be granted such rights of participation, plan admission and registration as may be granted to any health care service provider or practitioner, including a physician, advance practice registered nurse or physician assistant performing such a service.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8AAA the following 3 sections:-

Section 8BBB. (a) Any contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall provide coverage for collaborative drug therapy, as defined by section 24B½ of chapter 112, performed by a pharmacist at a rate not less than that provided to other nonphysician practitioners if the service or procedure:

(i) is for the treatment of opioid use disorder;

(ii) is within the scope of practice of the pharmacist; and

(iii) would otherwise be covered under the policy, plan, or contract if the service or procedure is provided by any health care service provider or practitioner, including a physician, advance practice registered nurse, or physician assistant.

(c) Whenever a service is performed by a licensed pharmacist and reimbursed pursuant to this section, the licensed pharmacist shall be granted such rights of participation, plan admission and registration as may be granted to any health care service provider or practitioner, including a physician, advance practice registered nurse or physician assistant performing such a service.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4AAA the following section:-

Section 4BBB. (a) A subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth, which is considered creditable coverage under section 1 of chapter 111M, shall provide coverage for collaborative drug therapy, as defined by section 24B½ of chapter 112, performed by a pharmacist at a rate not less than that provided to other nonphysician practitioners if the service or procedure:

(i) is for the treatment of opioid use disorder;

(ii) is within the scope of practice of the pharmacist; and

(iii) would otherwise be covered under the policy, plan, or contract if the service or procedure is provided by any health care service provider or practitioner, including a physician, advance practice registered nurse, or physician assistant.

(c) Whenever a service is performed by a licensed pharmacist and reimbursed pursuant to this section, the licensed pharmacist shall be granted such rights of participation, plan admission and registration as may be granted to any health care service provider or practitioner, including a physician, advance practice registered nurse or physician assistant performing such a service.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4SS the following section:-

Section 4TT. (a) An individual or group health maintenance contract that is issued or renewed within or without the commonwealth shall provide coverage for collaborative drug therapy, as defined by section 24B½ of chapter 112, performed by a pharmacist at a rate not less than that provided to other nonphysician practitioners if the service or procedure is all of the following:

(i) is for the treatment of opioid use disorder;

(ii) is within the scope of practice of the pharmacist; and

(iii) would otherwise be covered under the policy, plan, or contract if the service or procedure is provided by any health care service provider or practitioner, including a physician, advance practice registered nurse, or physician assistant.

(c) Whenever a service is performed by a licensed pharmacist and reimbursed pursuant to this section, the licensed pharmacist shall be granted such rights of participation, plan admission and registration as may be granted to any health care service provider or practitioner, including a physician, advance practice registered nurse or physician assistant performing such a service.

SECTION 7. Notwithstanding any general or special law to the contrary, the division of medical assistance within the executive office of health and human services shall apply to the United States Department of Health and Human Services for any amendment to the state Medicaid plan or for any Medicaid waiver necessary to implement section 10X of chapter 118E of the General Laws, inserted by section 2. Not later than June 30, 2025, the division shall submit the Medicaid state plan amendment.